

Note for identification of Wilful Defaulters

Subject : Identification of Wilful Defaulters

Name of Account : Abhishek - (11234)
Branch : Punjabi Bagh
Zone : South West

Fraud- Yes	Date of NPA- 2025-02-11
SARFAESI- Yes	Suit filed – Yes If Yes, OA No - Dated 2025-02-11
Consortium-	If Suit Filed, present stage- Review
NCLT-	Next date & Purpose-

The Executive Director : Ex Officio Chairman of the Committee

The General Manager, Recovery : Member of the Committee

The General Manager, Inspection : Member of the Committee

With a view to identify cases of Wilful Defaulters, RBI has suggested to form a committee consisting of Executive Director and two General Managers / Deputy General Managers as decided by the Board of the Bank. Accordingly, a Committee has been formed comprising of the above members.

Apropos Board approval dated , the members and quorum for the meeting will be Chairman of the committee and two General Manager Members as above

Following account and its Promotor have been recommended by the field authorities to be identified as Wilful Defaulters and to include them in RBI list of Wilful Defaulters. The details of the facilities of the borrower vis-à-vis dues against the borrower with reasons for recommendation are as under:

1. Name of the Account : **Abhishek**
Constitution :
PAN Number :
Aadhaar Number in case of Individual :
CIN No in case of Company :
Registered Address :
Factory/Office Address :
Email : **abhishek.a.verma@spocto.com**
Phone : **8989898989**

A) At the time of NPA :

Name of the /Proprietor/Individual/Company Borrower / its Director/Partner

S. N.	Name of Director /partner/ individual/ Proprietor	Designation	PAN	Aadhaar	Date of Birth	DIN	Contact No
1							
2							
3							

Address/es of the / Proprietor / Individual / Company Borrower / its Director/ Partner

S.N.	Name of Director/partner/ Proprietor / individual	Address
1		
2		
3		

B) On reporting date :

Name of the Guarantors:

S. N.	Name of Director /partner/ Proprietor / individual	Designation	PAN	Date of Birth	Aadhaar	DIN	Contact No
1							
2							
3							

Address/ es of the Guarantors:

S.N.	Name of Guarantor	Address
1		
2		
3		

3. Brief Details of the Borrower :

Rs. In Lakhs

Sr. No	Particulars	Response
1.	Stock Statement	
	Date of Last Stock Statement submitted by Borrower	
	Amount of Stock available on the Date of Statement	
	Amount of Debtor available on the Date of Statement	
	Whether Stock statement is available at present	
	Whether transactions are routed from CC Account	
2	Balance Sheet	
	Whether Balance Sheet is available (Latest Copy to be attached).	false ()
	Date of Balance Sheet if Yes,	

3. Business activity :

4. Brief History :

5. Year of establishment :

Details of facilities availed :

Rs. In Lakhs

Date of Sanction	Account No	Nature of Facility	Limit	Present Balance	NPA Date	IRAC	Provision

Sanctioning Authority :

5. Consortium details, if any : Consortium headed by

Rs. In lakhs

S.N.	Name of the Bank	Amt. outstanding as on date-	% of share
1.			
2.			
3.			

Details, if a/c is taken over from other Bank :

Name of the Banks which have declared the Account as Wilful Defaulters :

6. Suit filed on : 2025-02-11

OA No :

Suit Claim Amount :

Present stage : Review

Next date of hearing, purpose :

7. Details of criminal action, if any:

Whether declared as Fraud : Yes

Complaint with CBI :

Complaint with Police (FIR) :

8. Details of action under Securitization Act, if any :

a) Date of issue of notice u/s 13(2) :

- b) Date of issue of notice u/s 13(4) :
- c) Symbolic possession taken on :
- d) Physical possession taken on :
- e) Details of E-auction/s conducted :
- f) Date of DM permission applied for :
- g) Other details in addition to above :

9. Total dues at contractual rate as on (closure enquiry in CBS)

Rs. In lakhs				
Item	Term Loan 1	Term Loan2	Term Loan 3	Total
a) Ledger Balance				0
b) Unapplied interest				0
c) Expenses not debited to the a/c				0
d) Total Dues	0	0	0	

10. a) Year wise recovery since date of NPA :
b) Present status of the Business activity :
c) Details of Credit Guarantee cover, if any :

d) Details of facilities sanctioned to associate/sister concerns of the borrower:

Rs. In lakh				
Name of the account	Date of sanction / facilities sanctioned	Ledger Balance as on-	Present Status of the a/c	Remarks

e) Details of borrowing from other Banks/FIs :

Sr. No	No. of Lenders	Outstanding Amt.	No. of Default	Default Amt.
1.				
2.				
3.				

f) i) Remarks of present CIBIL Report (below details should be automatically fetched from CIBIL Website)

Reference no.
Date
CIBIL Score
BOM Loans

ii) No. of active loans other than Credit Card :
Total Outstanding amount :

g) Details of earlier offers / compromise
Proposals approved :
Date :

h) Details of NCLT reference, If any :

11. Examination of Staff lapses :
Whether lapses observed: :
Name & PF No. of the officers against whom lapses found:
Action taken: :

12. Security

Rs. In Lakhs

Description, location of security and other specific details of securities	Value of security at the time of sanction	Present Realizable Value of securities	Our share in security (%)	Name of the Valuer, Date of valuation & remarks
Primary Security (Details of securities)				

Collateral Security				

13. Net worth of the Borrowers & Guarantors:

Rs. in Lakhs			
Borrowers / Directors / Proprietor / Partner / Name Particulars	At the time of disbursement	Present Net Worth	Reasons for variation
Total			
Guarantors Name / Corporate Guarantor Particulars	At the time of disbursement	Present Net Worth	Reasons for variation
Total			

14. Rationale for recommending the account as Wilful Defaulter :

(Please attach only the relevant proofs of justifications viz. Visit Report, Forensic Audit Report/ Stock Audit Report, Statement of account, Minutes of JLF, correspondence with other Banks, CRILIC report, FIR, CBI complaint, Search Report, Valuation Reports, Net worth certificate, Balance Sheet etc. Kindly mention the page no. etc. of the Forensic Audit Report/ Stock Audit Report/ Statement of account.)

1. Following are the grounds for declaring the Borrowers as Wilful Defaulter as per RBI Circular,

(1) The unit has defaulted in meeting its payment / repayment obligations to the lender even when it has the capacity to honour the said obligations.
Justification:
Documentary proof attached:
(2) The unit has defaulted in meeting its payment / repayment obligations to the lender and has not utilized the finance from the lender for the specific purposes for which finance was availed of but has diverted the funds for other purposes.
(a) Utilization of short-term working capital funds for long-term purposes not in conformity with the terms of sanction:
Justification:
Documentary proof attached:
(b) Deploying borrowed funds for purposes / activities or creation of assets other than those for which the loan was sanctioned:
Justification:
Documentary proof attached:
(c)Transferring borrowed funds to the subsidiaries / Group companies or other corporates by whatever modalities:
Justification:
Documentary proof attached:
(d) Routing of funds through any bank other than the lender bank or members of consortium without prior permission of the lender
Justification:
Documentary proof attached:
(e) Investment in other companies by way of acquiring equities / debt instruments without approval of lenders;
Justification:
Documentary proof attached:
(f) Shortfall in deployment of funds vis-à-vis the amounts disbursed / drawn and the difference not being accounted for.
Justification:
Documentary proof attached:
(3) The unit has defaulted in meeting its payment / repayment obligations to the lender and has siphoned off the funds so that the funds have not been utilised for the specific purpose for which finance was availed of, nor are the funds available with the unit in the form of other assets.
Justification:
Documentary proof attached:

(4) The unit has defaulted in meeting its payment / repayment obligations to lender and has also disposed or removed the movable fixed assets or immovable property given by him or it for the purpose of securing a term loan without the knowledge of bank/lender.
Justification:
Documentary proof attached:
(5) The unit / Borrower / Promoter has failed in its commitment of the Lender to infuse equity despite having the ability to infuse the equity although the Lender has provided Loans or certain concession to the Borrower based on this commitment and other covenants and conditions.
Justification:
Documentary proof attached:

- 2) A Guarantor shall be deemed to have occurred Wilful Defaulter if the guarantor does not honor the guarantee when invoked by the lender, despite having sufficient means to make payment of the dues or has disposed of immovable or movable assets provided for the purpose of securing the credit facility, without the approval of the lender or has failed in commitment to the lender to infuse equity despite having the ability to induce the equity, although the lender has provided loans or certain concessions to the borrower based on this commitment.

Rationale for declaring the Guarantors as wilful defaulter:

Brief Facts / Details :

- 1) Action taken for Invocation of Guarantee like SARFEASI / Legal Notice / Legal Suit Filed :

S.N.	Name of Guarantor	Designation	CIN	Date of SARFEASI Notice / Legal Notice / Suit Filed Date
1				

- 2) Whether Guarantor/s are also Director (In case of Company)

- 3) Grounds for declaring the Guarantor as Wilful Defaulter

(1) The unit has defaulted in meeting its payment / repayment obligations to the lender even when it has the capacity to honour the said obligations.
Justification:
Documentary proof attached:
(2) The unit has defaulted in meeting its payment / repayment obligations to lender and has also disposed or removed the movable fixed assets or immovable property given by him or it for the purpose of securing a term loan without the knowledge of bank/lender.
Justification:
Documentary proof attached:
(3) The unit / Borrower / Promoter has failed in its commitment of the Lender to infuse equity despite having the ability to infuse the equity although the Lender has provided Loans or certain concession to the Borrower based on this commitment and other covenants and conditions.
Justification:
Documentary proof attached:

Conclusion:

In view of above default is intentional, deliberate, and calculated.

Considering the above events, after verifying the evidence / proofs, as per RBI guide lines, a ‘Wilful Default’ is deemed to have occurred in this account.

Recommendation:

In view of the foregoing, a case of Wilful default has been noticed in the account of **Abhishek of Punjabi Bagh South West**. We recommend the identification of the Company/ borrower, promoter directors and guarantors/ corporate guarantors as Wilful Defaulters and to include their names in RBI Wilful Defaulters list.

S.N.	Name of the account	Branch	Zone	Ledger Balance (lakhs)
01	Abhishek	Punjabi Bagh	South West	
S.N.	Name of the Directors	Designation	DIN/PAN	
01				
02				
03				

Rs. in lakh

S.N.	Name of Guarantor	Designation	PAN	DIN
01				
02				

Upon approval, the following resolution be passed.

RESOLUTION

Resolved that,

Wilful Default has occurred in the borrowal account Abhishek of Punjabi Bagh. Hence it has been identified as Wilful Defaulter with its following Proprietor.

S.N.	Name of the account	Branch	Zone	O/s Led. Bal.
01	Abhishek	Punjabi Bagh	South West	
S.N.	Name of the Individual/s	Designation	PAN No.	
01				
02				
03				
04				
05				
06				

In case of multiple names please add rows.

Further resolved that

- The CLO has been authorized to issue Show Cause notice to the above identified Wilful Defaulters i.e. Borrower and its Proprietor as stated in the above list by giving 21 days’ time for representation.
- The Submission / Representation if any as received will be considered on merit and further action will be taken by the Wilful Default Cell.

Note prepared by

Name : Operator
Designation : Intern
Wilful Default Cell

Name :
Secretary to the Committee

Date: 2025-02-11